

STANDING ORDER NO. 31/2010

ACTION TO BE TAKEN BY THE POLICE TO STOP CRUELTY TO ANIMALS.

- I. Several complaints are received, of animals being treated with cruelty in Delhi. For instance, complaints are received of animals being transported in Delhi in a cruel and unhygienic manner, in violation of the norms laid down by law. Similarly, it is often alleged that animals are cruelly slaughtered at unauthorized places in Delhi, in violation of municipal law. Complaints are also received of animals being confined, beaten, poisoned, mutilated, etc. This Standing Order intends to educate all officers of Delhi Police with the relevant laws and judicial directions, to enable them to effectively stop cruelty to animals.

While specialized agencies like Society for Prevention of Cruelty to Animals (SPCA), MCD, State Transport Authority etc. have been entrusted responsibility to prohibit such illegal practices under various laws, police officers also have adequate powers, and in fact, are duty bound to prevent cruelty to animals.

- II. **Article 51-A(g)** of the Constitution of India, under the head "**Directive Principles of State Policy**" casts a duty on every citizen of India, especially on law enforcing agencies like the police, to ensure kindness and compassion to all living creatures. With that end in view, the Central Government has enacted "**The Prevention of Cruelty to Animals Act, 1960**". The objective sought to be fulfilled by this enactment is to prevent the infliction of unnecessary pain or suffering on animals, and with that end in view various provisions have been made. The Act casts a duty on every person having the care and charge of any animal to take all reasonable measures to ensure the well-being of such animal and to prevent the infliction of unnecessary pain and suffering. Stray, or abandoned animals cannot be treated with cruelty either, and in fact, are more deserving of compassion from society on account of their being ownerless. Under Section 38 of the Prevention of Cruelty to Animals Act, Rules dealing with various aspects have also been enacted from time to time, to fulfill the purposes of the Act.

The Delhi Police are vested with powers to prevent cruelty to animals, and check illegal actions such as illegal slaughtering, under the Prevention of Cruelty to Animals Act, 1960, (PCA Act), Delhi Police Act, 1978, Delhi Municipal Corporation Act, 1957

(DMC Act), Delhi Agricultural Cattle Preservation Act, 1994, and the statutory rules framed under these enactments.

III. THE PREVENTION OF CRUELTY TO ANIMALS ACT, 1960

Treating animals cruelly is defined in **Section 11 (1)** of the Prevention of Cruelty to Animals Act, 1960, which lists the following actions as amounting to cruelty :-

- (a)** Beating, kicking, over-riding, over-driving, over loading, torturing, or causing unnecessary pain or suffering to any animal, or being its owner, permitting it to be treated so;
- (b)** Employing for work or labour, any animal which, by reason of its age or any disease, infirmity, wound, sore, etc. is unfit to be so employed, or being its owner, permitting it to be so employed;
- (c)** Willfully and unreasonably administering any injurious drug or injurious substance to any animal, or causing the same to be taken by it, or even attempting the same;
- (d)** Conveying or carrying any animal, either in or upon any vehicle in such a manner as to subject it to unnecessary pain or suffering;
- (e)** Keeping or confining any animal in any cage or receptacle, which does not measure sufficiently in height, length and breadth to permit the animal reasonable opportunity for movement;
- (f)** Keeping any animal chained or tethered upon an unreasonably short, or unreasonably heavy chain or chord, for an unreasonable time ;
- (g)** Neglecting to exercise or cause to be exercised reasonably, any dog habitually chained or kept in close confinement, despite being its owner;
- (h)** Being the owner of any animal, failing to provide such animal with sufficient food, drink or shelter;
- (i)** Without reasonable cause, abandoning any animal in circumstances which render it likely that it will suffer pain by reason of starvation or thirst;
- (j)** Willfully permitting any animal, of which he is the owner, to go at large in any street while the animal is affected with a contagious or infectious disease, or without reasonable excuse, permitting any diseased or disabled animal, of which he is the owner, to die in any street;

(k) Offering for sale or, without reasonable cause, having in his possession, any animal which is suffering pain by reason of mutilation, starvation, thirst, overcrowding or other ill-treatment;

(l) Mutilating any animal or killing any animal (including stray dogs) by using the method of strychnine injections in the heart, or in any other unnecessarily cruel manner;

(m) Solely with a view to providing entertainment, confining or causing to be confined any animal (including tying of an animal as bait in a tiger or other sanctuary) so as to make it an object of prey for any other animal, or inciting any animal to fight or bait any other animal;

(n) Organizing, keeping, using or acting in the management of any place for animal fighting, or for the purpose of baiting any animal, or permitting or offering any place to be used thus, or receiving any money for the admission of any other person to any place kept or used for any such purposes;

(o) Promoting or taking part in any shooting match or competition wherein animals are released from captivity for the purpose of such shooting.

It is also pertinent, and may be noted that even destruction, or preparation for destruction of any animal as food for mankind is an offence if '*such destruction or preparation was accompanied by the infliction of unnecessary pain or suffering*'.

Section-12: Penalty of practicing phooka or doom dev.- If any person performs upon any cow or other milch animal the operation called phooka or doom dev or any other operation (including injection of any substance) to improve lactation which is injurious to the health of the animal] or permits such operation being performed upon any such animal in his possession or under his control, he shall be punishable with fine which may extend to one thousand rupees, or with imprisonment for a term which may extend to two years, or with both, and the animal on which the operation was performed shall be forfeited to the Government.

Section 20: Penalties - If any person-

- (a) Contravenes any order made by the Committee under section 19; or
- (b) commits a breach of any condition imposed by the Committee under that section;

he shall be punishable with fine which may extend to two hundred rupees, and, when the contravention or breach of condition has taken place in any institution, the person in charge of the institution shall be deemed to be guilty of the offence and shall be punishable accordingly.

Section 32: Powers of search and seizure. - (1) If a police officer not below the rank of sub-inspector or any person authorized by the State Government in this behalf has reason to believe that an offence under clause (1) of sub-section(1) of section 11 in respect of any such animal as is referred to in section 30 is being or is about to be, or has been, committed in any place, or that any person has in his possession the skin of any such animal with any part of the skin of the head attached thereto, he may enter and search such place or any place in which he has reason to believe any such skin to be, and may seize such skin or any article or thing used or intended to be used in the commission of such offence.

(2) If a police officer not below the rank of Sub-Inspector, or any person authorized by the State Government in this behalf, has reason to believe that phooka or [doom dev or any other operation of the nature referred to in section 12] has just been, or is being, performed on any animal within the limits of his jurisdiction, he may enter any place in which he has reason to believe such animal to be, and may seize the animal and produce it for examination by the veterinary officer in charge of the area in which the animal is seized.

IV) Powers of police officers and other authorized persons under Rule 11 of the Prevention of Cruelty to Draught and Pack Animals Rules, 1965

- (1) If any police officer above the rank of a constable or any other person authorized in this behalf by the State Government or by the Board by general or special order has reason to believe that an offence against rule 3 or 4, has been or is being committed in respect of any animal referred to therein, he may, in any case where a weigh bridge is available within a reasonable distance, require the owner or other person in charge of such animal to take the animal or the vehicle or both to the weigh bridge for the purpose of determining the weight of the load which the animal has been or is drawing or carrying.
- (2) If the owner or other person in charge of the aforesaid animal refuses to comply with the demand of the police officer or other person as so authorized, it shall be lawful for such police officer or other person to take the animal or the vehicle or both to the weight bridge for the purpose aforesaid.

- (3) As soon as any weight is determined under this rule, the owner or other person in charge of the said animal shall be given a statement in writing signed by the police officer or the person authorized as aforesaid, as the case may be, as to the weight so determined and any other information relevant for the purpose.

V) PREVENTION OF CRUELTY TO ANIMAL (SLAUGHTER HOUSE) RULES, 2001.

S.O.270(E):- Whereas the draft Prevention of Cruelty of Animals (Slaughter House) Rules, 2000 were published, as required by sub-section (1) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960), under the notification of the Government of India in the Ministry of Social Justice and Empowerment number S.O. 1165 (E) dated the 26th December, 2000 in the Gazette of India, Extraordinary, Part II, Section 3, Sub Section (ii) dated the 27th December, 2000 inviting objections and suggestions from all persons likely to be affected thereby, before the expiry of the period of sixty days from the date on which copies of the Gazette containing the said notification are made available to the public.

And, whereas copies of the said Gazette were made available to the public on the 1st January 2001.

And, whereas no objection or suggestion has been received from the public in respect of the said draft rules by the Central Government.

Now, therefore, in exercise of the powers conferred by sub-sections (1) and (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960), the Central Government hereby makes the following rules, namely:

1. Short title and commencement:-

(1) These rules may be called the Prevention of Cruelty to Animals (Slaughter House) Rules, 2001.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. Definitions:-

In these rules unless the context otherwise requires :-

- a) "Act" means the Prevention of Cruelty to Animals Act, 1960 (59 of 1960);

- b) **"Slaughter"** means the killing or destruction of any animals for the purpose of food and includes all the processes and operations performed on all such animals in order to prepare it for being slaughtered.
- c) **"Slaughter house"** means a slaughter house wherein 10 or more than 10 animals slaughtered per day and is duly licensed or recognized under a Central, State or Provincial Act or any rules or regulations made thereunder.
- d) **"Veterinary doctor"** means a person registered with the Veterinary Council of India established under the Indian Veterinary Council Act, 1984 (52 of 1984).

3. **Animals not to be slaughtered except in recognized or licensed house:-**

(1) No person shall slaughter any animal within a municipal area except in a slaughter house recognized or licensed by the concerned authority empowered under the law for the time being in force to do so.

(2) No animals which-

- (i) is pregnant, or
- (ii) has an offspring less than three months old, or
- (iii) is under the age of three months or
- (iv) has not been certified by a veterinary doctor that it is in a fit condition to be slaughtered. Shall be slaughtered.

(3) The municipal or other local authority specified by the Central Government for this purpose shall, having regard to the capacity of the slaughter house and the requirement of the local population of the area in which a slaughter house is situated, determine the maximum number of animals that may be slaughtered in a day.

4. **Reception area or resting grounds:-**

- 1.) The slaughter house shall have a reception area of adequate size sufficient for livestock subject to veterinary inspection.
- 2.) The veterinary doctor shall examine thoroughly not more than 12 animals in an hour and not more than 96 animals in a day.
- 3.) The veterinary doctor after examining the animal shall issue a fitness certificate in the form specified by the Central Government for this purpose.

- 4.) The reception area of slaughter house shall have proper ramps for direct unloading of animals from vehicles or railway wagons and the said reception area shall have adequate facility sufficient for feeding and watering of animals.
- 5.) Separate isolation pens shall be provide in slaughter house with watering and feeding arrangements for animals suspected to be suffering from contagious and infectious diseases, and fractious animals, in order to segregate them from the remaining animals.
- 6.) Adequate holding area shall be provided in slaughter house according to the class of animals to be slaughtered and the said holding area shall have water and feeding facilities.
- 7.) The resting grounds in slaughter house shall have overhead protective shelters.
- 8.) Ante-mortem and pen Area in slaughter house shall be paved with impervious material such as concrete non-slippery herring-bone type suitable to stand wear and tear by hooves, or brick, and pitched to suitable drainage facilities and the curbs of said impervious material 150 to 300 mm high shall be provided around the borders of livestock pen area, except at the entrances and such pen shall preferably be covered.

5. Lairages :-

- 1) Every animal after it has been subject to veterinary inspection shall be passed on to a lairage for resting for 24 hours before slaughter.
- 2) The lairage of the slaughter house shall be adequate in size sufficient for the number of animals to be laired;
- 3) The space provided in the pens of such lairage shall be not less than 2.8 sq.mt. per large animal and 1.6 sq.mt. per small animal.
- 4) The animals shall be kept in such lairage separately depending upon their type and class and such lairage shall be so constructed as to protect the animals from heat, cold and rain.
- 5) The lairage shall have adequate facilities for watering and post-mortem inspection.

6. Slaughter:-

- 1) No animal shall be slaughtered in a slaughter house in sight of other animals.

- 2) No animal shall be administered any chemical, drug or hormone before slaughter except drug for its treatment from any specific disease or ailment.
- 3) The slaughter halls in a slaughter house shall provide separate sections of adequate dimensions sufficient for slaughter of individual animals to ensure that the animal to be slaughtered is not within the sight of other animals.
- 4) Every slaughter house as soon as possible shall provide a separate space for stunning of animals prior to slaughter, bleeding and dressing of the carcasses.
- 5) Knocking section in slaughter house may be so planned as to suit the animal and particularly the ritual slaughter, if any and such knocking section and dry landing area associated with it shall be so built that escape from this section can be easily carried out by an operator without allowing the animal to pass the escape barrier.
- 6) A curbed-in bleeding area of adequate size as specified by the Central Government shall be provided in a slaughter house and it shall be so located that the blood could not be splashed on other animals being slaughtered or on the carcass being skinned.
- 7) The blood drain and collection in a slaughter house shall be immediate and proper.
- 8) A floor wash point shall be provided in a slaughter house for intermittent cleaning and a hand-wash basin and knife sterilizer shall also be provided for the sticker to sterilize knife and wash his hands periodically.
- 9) Dressing of carcasses in a slaughter house shall not be done on floor and adequate means and tools for dehiding or belting of the animals shall be provided in a slaughter house with means for immediate disposal of hides or skins;
- 10) Hides or skins shall be immediately transported from a slaughter house either in a closed wheelbarrow or by a chute provided with self-closing door and in no case such hides or skins shall be spread on slaughter floor for inspection.
- 11) Floor wash point and adequate number of hand wash basins with sterilizer shall be provided in a dressing area of a slaughter house with means for immediate disposal of legs, horns, hooves and other parts of animals through spring load floor chutes or sidewall doors or closed wheelbarrows and in case wheelbarrows or trucks are used in a slaughter house, care shall be taken that no point

wheelbarrow or truck has to ply under the dressing rails and a clear passage is provided for movement of the trucks.

12) Adequate space and suitable and properly located facilities shall be provided sufficient for inspection of the viscera of the various types of animals slaughtered in a slaughter house and it shall have adequate facilities for hand washing, tool sterilization and floor washing and contrivances for immediate separation and disposal of condemned material.

13) Adequate arrangements shall be made in a slaughter house by its owner for identification, inspection and correlation of carcass, viscera and head.

14) In a slaughter house, a curbed and separately drained area or an area of sufficient size, slopped 33 mm per meter to a floor drain, where the carcasses may be washed with a jet of water, shall be provided by the owner of such slaughter house.

7. Engagement in slaughter house -

- 1) No owner or occupier of a slaughter house shall engage a person for slaughtering animals unless he possesses a valid license or authorization issued by the municipal or other local authority.
- 2) No person who has not attained the age of 18 years shall be employed in any manner in a slaughter house.
- 3) No person who is suffering from any communicable or infectious disease shall be permitted to slaughter an animal.

8. Inspection of slaughter house-

- (1) The Animal Welfare Board of India or any person or Animal Welfare Organization authorized by it may inspect any slaughter house without notice to its owner or the person incharge of it at any time during the working hours to ensure that the provisions of these rules are being complied with.
- (2) The person or the Animal Welfare Organization authorized under sub rule (1) shall after inspection send its report to Animal Welfare Board of India as well as to the municipal or local authority for appropriate action including initiation of legal proceedings if any, in the event of violation of any provisions of these rules.

VI) PREVENTION OF CRUELTY TO ANIMALS (TRANSPORT OF ANIMALS ON FOOT) RULES, 2001

Section-4: Condition of health of animals transported on foot.

(1) Every animal to be transported on foot shall be healthy and in good condition for such transport.

(2) A certificate of a veterinary doctor in respect of each animal to be transported to the effect that such animal is in a fit condition for such transportation and is not suffering from any infectious, contagious or parasitic diseases and that it has been vaccinated against any infectious, contagious or parasitic diseases shall accompany such animal.

(3) The certificate under sub-rule (1) shall be in the form as specified in the First Schedule.

Section 12. Certain prohibition on transport of animals on foot:

- (1) No person shall transport on foot an animal before sunrise or after sunset.
- (2) No animal shall be transported on foot beyond the distance, time, rest interval and temperature specified for such animal in the Table below, namely,-

Note.- After being provided with water every animal shall be given a break of 20 minutes before the commencement of the transport of the animal on foot and

Species (Animal)	Maximum distance covered/day / hour	Maximum no. of walking/ day of hours (traveling)	Period of rest (Interval)	Temperatu re range Max. Min.
Cattle(Cows)	30 Km/day 4 km/hr.	8 hours	At every 2 hours for drinking and at every 4 hrs. for feeding	12 deg. C. to 30 deg. C.
Buffaloes	25 Km/day 3 km/hr.	8 hours	At every 2 hours for drinking and at every 4 hrs. for feeding	12 deg. C. to 30 deg. C.
Cows and Buffaloes calves	16 Km/day 2.5 km/hr.	6 hours	At every 1 ½ hours for drinking and	15 deg. C. to 25 deg. C.

			at every 3 hrs. for feeding	
Horses, Ponies, Mules, Donkeys	45 Km/day 6 km/hr	8 hours	At every 3 hours for drinking and at every 6 hrs. for feeding	12 deg. C. to 30 deg.C.
Young ones(foal)	25 Km/day 4 km/hr	6 hours	At every 2 hours for drinking and at every 4 hrs. for feeding	15 deg. C. to 25 deg. C.
Goats and Sheep	30 Km/day 4 km/hr	8hours	At every 2 hours for drinking and at every 4 hrs. for feeding.	12 deg. C. to 30 deg. C.
Kids and Lambs	16 Km/day 2.5 km/hr	6hours	At every 1 1/2 hours for drinking and at every 3 hrs. for feeding	15 deg. C. to 25 deg.C.
Pigs	15 Km/day 2 km/hr	8hours	At every 1 1/2 hours for drinking and at every 3 hrs. for feeding	12 deg.C. to 25 deg.C.
Piglets	10 Km/day 1.5 km/hr	6 hours	At every 1 1/2 hours for drinking and at every 3 hrs. for feeding	15 deg. C. to 25 deg.C.

in case of feeding the break shall be given for one hour before the commencement of the transport of the animal on foot.

- (3) No animal shall be made to walk under conditions of heavy rain, thunderstorms or extremely dry or sultry conditions during its transport on foot.

VII

Transport of Animals (Amendment) Rules, 2001.

The Chairman, Animal Welfare Board of India (AWBI) conveyed vide letter No. F.No.11/2010-COAWBI dated 11.08.2010 that it has been decided that a State Government Veterinarian not below the rank of Assistant Director/SDO(District Animal Husbandry Officer) in each district will issue certificates under Rule 96 for transportation of animals in the respective States. The certificate issuing person will ensure that cow and its progeny are not being transported for slaughter as per concerned state rules and all stipulations as provided in the Rules 96-97 of Transportation of Animal (Amendment) Rules 2001 are implemented in letter and spirit:-

Rule 96 – Issue of certificate before transportation -

(1) A valid certificate issued by an officer or any person or Animal Welfare Organization duly recognized and authorized for this purpose by the Animal Welfare Board of India or the Central Government shall be procured by any person making transport of any animal before transportation of such animal verifying that all the relevant Central and State Acts, rules and orders pertaining to the said animals including the rules relating to transport of such animals have been duly complied with and that the animal is not being transported for any purpose contrary to the provision of any law.

(2) In the absence of such certificate , the carrier shall refuse to accept the consignment for transport.

Explanation: For the purpose of this rule the certificate shall be issued in such form as may be specified for this purpose by the Central Government.

Rule 97. Cancellation of permit or authorization for transport-

(1) In the event of contravention or non compliance of any of the rules contained in these rule for transport of animals, it is pointed out in writing by any officer or persons or Animal Welfare Organizations authorized for this purpose by the Animal Welfare Board of India or the Central Government, then, any permit or authorization issued for such transport shall be immediately cancelled by the concerned authority and it shall be the duty of the police to stop the further transport even from the intermediary station and proceed against the said offenders and deal with the animal in accordance with law.

(2) The custody of the animals immediately after unloading from the rail wagons, truck or any other vehicle shall be given to the authorized Animal Welfare Organization if available, till the competent authority or the magistrate having jurisdiction decides about their care and upkeep.

**PROFORMA FOR APPLYING FOR PERMISSION FOR ISSUE OF
CERTIFICATE BEFORE TRANSPORTATION OF ANIMALS.**

(See Rule 96 of Transport of animals (Amendment) Rules 2001)

1.	Name and address of the consignor	
2.	Name and address of the consignee	
3.	Name and address of the transport Authority/agency	
4.	Whether proforma for certificate of fitness to travel has been issued by Veterinary Doctor to State that a) The animal are free from infectious diseases and are fit to undertake the journey b) There are no animals which are unfit for transport such as new born, diseased, blind, emaciated lame, fatigue or having given birth during the preceding 72 hours or likely to give birth during transport. c) Pregnant and young animals are not mixed with other animals during transport. d) Different classes of animals are kept separately during transport e) Diseased animals are not mixed with other animals. f) Trouble some animals are given tranquilizers before loading	
5.	Purpose for which the animals are transported	
6.	Details of applications and certificate issued by other authorities covered in this case. (copies of relevant documents to be enclosed)	
7.	Whether animals have required provisions of feed – fodder, water rest and milking facilities during transportation	
8.	Time and place of transport	

9.	Details of railway/road transport route with details of departure and arrival times at different points	
10.	Place of inspection by the authorized representative of Animals Welfare Board of India (AWBI)	

The particulars given above are true to my knowledge. All the relevant Central and State Act Rules and orders have been complied with.

Signature of Consignor/Applicant

CERTIFICATE

I hereby certify that I have read the Rule 96 of the Transport of Animals (amendment) Rules 2001 and the permission for transport of animals as per the above application is hereby issued.

Signature of authorized
Representative of AWBI

VIII General conditions of transport.

- (1) Animals to be transported shall be healthy and in good condition and such animals shall be examined by a veterinary doctor for freedom from infectious diseases and their fitness to undertake the journey, provided that the nature and duration of the proposed journey shall be taken into account whilst deciding upon the degree of fitness.
- (2) An animal which is unfit for transport shall not be transported and the animals who are newborn, diseased, blind, emaciated, lame, fatigued or having given birth during the preceding seventy two hours or likely to give birth during transport shall not be transported.
- (3) Pregnant and very young animals shall not be mixed with other animals during transport.
- (4) Different classes of animals shall be kept separately during transport.
- (5) Diseased animals, whenever transported for treatment, shall not be mixed with other animals.

- (6) Troublesome animals shall be given tranquilisers before loading during transport.
- (7) Animals shall be transported in their on-farm social groups (established at least one week prior to journey).

Also to be kept in mind:

- 1) That if the general conditions laid down in Section 98 of the Transport of Animals Rules, 1978 are not being strictly adhered to, the animals being transported in contravention of the Rules should be unloaded immediately and sent to the nearest animal shelter.
- 2) The transport vehicle must be large enough to carry the animals comfortably, and the animals must not be tightly packed and jammed inside. They should also be protected from the weather.
- 3) Animals are not allowed to be transported by tempo.
- 4) Within the vehicle, partitions must exist at every two or three meters across the width to prevent the crowding and trapping of animals.
- 5) Sufficient food and water has to be carried till the end of the journey.
- 6) First aid equipment has to be available in the vehicle.
- 7) Suitable ramps have to be provided for loading and unloading the animals.
- 8) Material for padding such as straw, at least 5 cm thick, has to be placed on the floor to avoid injury.

Rules 47 to 56 of these Rules pertain to the transportation of cattle. These clearly stipulate that moving goods vehicles shall not carry more than 6 cattle, and shall be provided with one attendant, and shall not be loaded with any other merchandise.

Rules 65 to 75 of these Rules pertain to the transportation of sheep and goats by road, involving journeys of more than 6 hours. These stipulate that a valid health certificate by a certified veterinarian, to the effect that the animals are in a fit condition and do not suffer from infectious, contagious or parasitic diseases, has to be available. Each consignment is required to have a label in bold letters specifying the name, address and telephone number of the consigner and consignee. The animals cannot be fettered.

In this context, in addition to the above Rule 80 of the Delhi Motor Vehicle Rules, 1933 is also relevant. It seeks to ensure reasonable space and securing of cattle/animals, and speed limit of 24 kms per hour during transportation. Rule 80 (2) specifies the number and categories of cattle that may be carried in goods carriers, which is as follows:-

Name of animal	Permissible numbers	Size of wheel base	Name of vehicles
1. Goats, sheep, pigs, rams, cows, kids and the like	i) 40	Below 3.5 meter	LMVs such as Swaraj Mazda and Tata Troop Carrier (407)
	ii) 50	3.5 meter and above	Tata Bus LPO/1510, Tata Truck SE 1615, Tata Recovery Van SE 1615, Tata Mini Truck (709), Ashok Leyland Hanlge Model Truck-616H, Ashok Leyland Truck-163-H/2, Ashok Leyland Truck Ecomat 1112.
2. Other cattle	i) 4 with calves/ young ones or 5 without calves/young ones.	Below 3.5 meter	LMVs such as Swaraj Mazda and Tata Troop Carrier (407)
	ii) 5 with calves /young ones or 6 calves/young ones.	3.5 meter and above	Tata Bus LPO/1510, Tata Truck SE 1615, Tata Recovery Van SE 1615, Tata Mini Truck (709) Ashok Leyland Hanlge Model Truck-616H, Ashok Leyland Truck-163-H/2, Ashok Leyland Truck Ecomat 1112.

- The number of calves and cattle that can be transported is specified in Rule 80 of the Delhi Motor Vehicles Rules, 1993.

- Vehicles such as 3 wheelers, cars, etc. do not qualify as goods carriers, and thus, cannot carry animals.

IX. THE DELHI POLICE ACT, 1978

Sections 73, 77, 78, 79 and 99 are the provisions that deal with cruelty to animals, and prescribe the penalties for the same. They read as follows:-

SECTION 73 -

"Powers with regard to offences under Act 59 of 1960:

- (1) When in respect of an animal an offence punishable under Sub-Section (1) of Section 11 or Section 12 of the Prevention of Cruelty to Animals Act, 1960 has been committed, or when there is a reasonable ground for suspecting that such offence has been committed, a police officer may---

- (a) Take the animal to the Metropolitan Magistrate, or
- (b) If the accused person so requires, take the animal to a veterinary officer specified by general or special order by the Administrator in this behalf.

Provided that the police officer may, instead of taking the animal to a veterinary officer, take the animal for detention in a dispensary, or in any suitable place approved by the Administrator by general or special order and the animal shall thereupon be detained there until its production before a Metropolitan Magistrate, or

- (c) Take the animal to an infirmary appointed under Section 35 of the said Act for treatment and detention therein, pending direction of a Magistrate under Sub-Section (2) of that Section, or
- (d) When the animal is in such physical condition that it cannot be taken to a veterinary officer or a Metropolitan Magistrate, draw up a report of the condition of the animal in the presence of two or more respectable persons describing such wound, sores, fractures, bruises, or other marks of injury as may be found on the body of the animal;

Provided that the police officer may take the animal for detention in a dispensary or in any suitable place approved by the Administrator by general or special order and the animal shall thereupon be detained there until its production before a Metropolitan Magistrate.

2. Where an animal is detained in dispensary, infirmary or other place under sub-section (1), the animal shall be produced before a

Metropolitan Magistrate with the least possible delay and in any case within a period not exceeding three days from the date on which it was detained."

SECTION 77 -

"Power of police officer to unsaddle animal or to unload it. ---

When a police officer in good faith suspects that any animal being employed in any work or labour is, by reason of any sore, unfit to be so employed, he may require the person in charge of such animal to unsaddle or unload it for the purpose of ascertaining whether any sore exists and, if any person refuses to do so, such police officer may himself unsaddle or unload the animal or may cause the same to be unsaddled or unloaded."

SECTION 78 -

"Arrest without warrant in case of certain offences under Act 59 of 1960.

Any police officer may arrest, without a warrant from a Magistrate, any person committing in his presence any offence punishable under clauses (a) to (m) (both inclusive) of sub-section (1) of section 11 of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960)".

SECTION 79 -

"Provisions of chapter to be in addition to the provisions of Act 59 of 1960.

The provisions of this chapter shall be addition to, and not in derogation of, the provisions of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960)".

SECTION 99 -

"Punishment for cruelty to animals.

Whoever in any place cruelly beats, goads, overworks, ill-treats or tortures or causes, or procures to be cruelly beaten, goaded, overworked, ill-treated or tortured, any animal shall, on conviction, be punished with imprisonment which may extend to one month, or with fine which may extend to one hundred rupees, or with both".

X. INDIAN PENAL CODE, 1860

The following two sections are relevant in this context:-

SECTION 428-

"Mischief by killing or maiming animal of the value of ten rupees. ---

Whoever commits mischief by killing, poisoning, maiming or rendering useless any animal or animals of the value of ten rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both".

SECTION 429 -

"Mischief by killing or maiming cattle, etc., of any value or any animal of the value of fifty rupees. --- Whoever, commits mischief by killing, poisoning, maiming or rendering useless, any elephant, camel, horse, mule, buffalo, bull cow or ox, whatever may be the value thereof, or any other animal of the value of fifty rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both".

The offences under these sections are cognizable and bail able.

XI. DELHI AGRICULTURAL CATTLE PRESERVATION ACT, 1994

This Act has been enacted to provide for the preservation of animals suitable for milch, draught, breeding or agricultural purposes. It is applicable to the National Capital Territory of Delhi. **Section 4** of the Act prohibits slaughter of agricultural cattle, and **Section 5** thereof prohibits transport or export of agricultural cattle for slaughter. **Section 7** of the Act prohibits sale, purchase, and disposal in any other manner of agricultural cattle. Agricultural cattle include cows of all ages, calves of all ages, bulls and bullocks.

Under **Section 11(3)** of the Act, any police officer not below the rank of Sub-Inspector is empowered, with a view to securing compliance with the provisions of Sections 5 and 7 (and Sections 8 and 9 as well), enter, stop and search, or authorize any person to enter, stop and search any vehicle used or intended to be used for the export of agricultural cattle. He is also empowered to seize, or authorize the seizure of agricultural cattle in respect of which he suspects that any contravention of Sections 5, 7, 8 or 9 is likely to occur, along with the vehicle/s in which such agricultural cattle may be found.

Section 12 of the Act sets out the penalty for contravention of Sections 4, 5 and 7 of the Act, which is imprisonment of either description for a term that may extend to 5 years, and fine which may extend to Rs.10,000/-.

Offences under the Act are cognizable and non-bailable as per **Section 15** of the same.

XII. THE WILD LIFE (PROTECTION) ACT, 1972

This Act was enacted for the protection of wild animals, birds, etc., and for ensuring ecological and environmental security of the

country. Animal includes mammals, birds, reptiles, amphibians, fish etc., and their young and eggs.

Under **Section 50** of the Act, the powers of entry/search/arrest and detention have been conferred among others upon a police officer not below the rank of Sub-Inspector. He can require any person who he believes has committed an offence under the Act to produce for inspection, any captive animal, wild animal, animal article etc., in his control, custody or possession; or stop any vehicle or vessel in order to conduct search or inquiry, or enter upon and search any premises, land etc.; or seize any captive animal, wild animal, animal article, etc., in respect of which an offence under this Act seems to have been committed. He is also empowered to arrest the person from whose possession he seizes the captive animal, wild animal, animal article, etc., without warrant, unless he is satisfied that such person will appear and answer any charge which may be preferred against him.

Penalties have been prescribed under **Section 51** of the Act. Imprisonment for a term which may extend to 3 years, or fine which may extend to Rs.25,000/- or both, are provided for.

Cognizance of the offences can be taken by the court only upon the complaint of certain authorized persons, such as the Director of Wild Life Preservation, Chief Wild Life Warden, etc. As such, the active involvement of these officials is required even after the police has taken action under Section 50 of the Act.

FORFEITURE OF PROPERTY DERIVED FROM ILLEGAL HUNTING AND TRADE

Section 58A. Application. -The provisions of this Chapter shall apply only to the following persons, namely:-

- (a) every person who has been convicted of an offence punishable under this Act with imprisonment for a term of three years or more;
- (b) every associate of a person referred to in clause (a);
- © any holder (hereafter in this clause referred to as the present holder) of any property which was at any time previously held by a person referred to in clause (a) or clause(b) unless the present holder or, as the case may be, any one who held such property after such person and before the present holder, is or was a transferee in good faith for adequate consideration.

Section 58B. Definitions.- In this chapter, unless the context otherwise requires,-

- (a) "Appellate Tribunal" means the appellate Tribunal for Forfeited Property constituted under section 58N;
- (b) "**associate**" in relation to a person whose property is liable to be forfeited under this Chapter, includes-
 - (i) any individual who had been or is managing the affairs or keeping the accounts of such person;
 - (ii) any association of persons, body of individuals, partnership firm or private company within the meaning of the Companies Act, 1956 (1 of 1956) of which such person had been or is a member, partner or director;
 - (iii) any individual who had been or is a member, partner or director of an association of persons, body of individuals, partnership firm or private company referred to in sub-clause (ii) at any time when such person had been or is a member, partner or director of such association, body, partnership firm or private company;
 - (iv) any person, who had been or is managing the affairs, or keeping the accounts of any association of persons, body of individuals, partnership firm or private company referred to in sub-clause (iii);
 - (v) the trustee of any trust, where,-
 - (1) the trust has been created by such person; or
 - (2) the value of the assets contributed by such person (including the value of the assets, if any, contributed by him earlier) to the trust amounts on the date on which contribution is made, to not less than twenty per cent of the value of the assets of the trust on that date;
 - (vi) where the competent authority, for reasons to be recorded in writing, considers that any properties of such person are held on his behalf by any other person, such other person;
- (c) "competent authority" means an officer authorized under section 58D;
- (d) "concealment" means the concealment or disguise of the nature, source, disposition, movement or ownership of property and includes the movement or conversion of such property by electronic transmission or by any other means;
- (e) "freezing" means temporarily prohibiting the transfer, conversion, disposition or movement of property by any order issued under section 58F;

- (f) "identifying" includes establishment of proof that the property was derived from, or used in, the illegal hunting and trade of wild life and its products;
- (g) "illegally acquired property" in relation to any person to whom this Chapter applies, means,-
 - (i) any property acquired by such person, wholly or partly out of or by means of any income, earnings or assets derived or obtained from or attributable to illegal hunting and trade of wild life and its products and derivatives;
 - (ii) any property acquired by such person, for a consideration or by any means, wholly or partly traceable to any property referred to in sub-clause (i) or the income or earning from such property, and includes-
 - (A) any property held by such person which would have been, in relation to any previous holder thereof, illegally acquired property under this clause if such previous holder had not ceased to hold it, unless such person or any other person who held the property at any time after such previous holder or, where there are two or more such previous holders, the last of such previous holders is or was a transferee in good faith for adequate consideration;
 - (B) any property acquired by such person, for a consideration, or by any means, wholly or partly traceable to any property falling under item (A), or the income or earnings there from;
- (h) "property" means property and assets of every description, whether corporeal or incorporeal, movable or immovable, tangible or intangible and deeds and instruments evidencing title to, or interest in, such property or assets, derived from the illegal hunting and trade of wild life and its products;
- (i) "relative" means -
 - (1) Spouse of the person;
 - (2) brother or sister of the person;
 - (3) brother or sister of the spouse of the person;
 - (4) any lineal ascendant or descendant of the person;
 - (5) any lineal ascendant or descendant of the spouse of the person;
 - (6) spouse of a person referred to in sub-clause (2), sub-clause (3), sub-clause (4) or sub-clause (5);
 - (7) any lineal descendant of a person referred to in sub-clause (2) or sub-clause (3);
- (j) "Tracing" means determining the nature, source, disposition, movement, title or ownership of property;

(k) "trust" includes any other legal obligation.

Section 58-C. Prohibition of holding illegally acquired property. - (1)

From, the date of commencement of this Chapter, it shall not be lawful for any person to whom this Chapter, applies to hold any illegally acquired property either by himself or through any other person on his behalf.

(2) Where any person holds such property in contravention of the provisions of sub-section (1), such property shall be liable to be forfeited to the State Government concerned in accordance with the provisions of this Chapter;

Provided that no property shall be forfeited under this Chapter if such property was acquired by a person to whom this Act applies before a period of six years from the date on which he was charged for an offence relating to illegal hunting and trade of wild life and its products.

Section 58D. Competent authority.- The State Government may, by order published in the Official Gazette, authorize any officer not below the rank of Chief Conservator of Forests to perform the functions of the competent authority under this Chapter in respect of such persons or classes of persons as the Government may, direct.

Section 58E. Identifying illegally acquired property. - (1) An officer not below the rank of Deputy Inspector General of Police duly authorized by the Central Government or as the case may be, the State Government, shall, on receipt of a complaint from the competent authority about any person having illegally acquired property, proceed to take all steps necessary for tracing and identifying any property illegally acquired by such person.

(2) The steps referred to in sub-section (1) may include any inquiry, investigation or survey in respect of any person, place, property, assets, documents, books of account in any bank or financial institution or any other relevant step as may be necessary.

(3) Any inquiry, investigation or survey referred to in sub-section (2) shall be carried out by an officer mentioned in sub-section (1) in accordance with such directions or guidelines as the competent authority may make or issue on this behalf.

Section 58F. Seizure of freezing of illegally acquired property.- (1)

Where any officer conducting an inquiry or investigation under section 58E has reason to believe that any property in relation to which such inquiry or investigation is being conducted is an illegally acquired property and such property is likely to be concealed, transferred or dealt

with in any manner which may result in frustrating any proceeding relating to forfeiture of such property under this Chapter, he may make an order for seizing such property and where it is not practicable to seize such property, he may make an order that such property shall not be transferred or otherwise dealt with, except with the prior permission of the officer making such order, or of the competent authority and a copy of such order shall be served on the person concerned.

Provided that a copy of such an order shall be sent to the competent authority within forty-eight hours of its being made.

(2) Any order made under sub-section (1) shall have no effect unless the said order is confirmed by an order of the competent authority within a period of thirty days of its being made.

(3) Explanation.- For the purposes of this section, "transfer of property" means any disposition, conveyance, assignment, settlement, delivery, payment or other alienation of property and, without limiting the generality of the foregoing, includes-

- (a) The creation of a trust in property;
- (b) the grant or creation of any lease, mortgage, charge, easement, license, power, partnership or interest in property;
- (c) the exercise of a power of appointment, of property vested in any person not the owner of the property, to determine its disposition in favour of any person other than the donee of the power; and
- (d) any transaction entered into by any person with intent thereby to diminish directly or indirectly the value of his own property and to increase the value of the property of any other person.

XIII. DELHI MUNICIPAL CORPORATION ACT, 1957

Section 407 (2) of this Act provides that no place other than a municipal slaughter house shall be used as a slaughter house.

Section 415 provides that no person shall, without a license from the Commissioner, MCD, carry on the trade of a butcher, fishmonger, poulterer or importer of flesh intended for human food, or use any place for the sale of flesh, fish or poultry intended for human food.

Section 417. Premises not be used for certain purposes without licence. - (1) No person shall use or permit to be used any premises for any of the following purposes without or

otherwise than in conformity with the terms of a licence granted by the Commissioner in this behalf, namely:-

- (a) any of the purposes specified in Part I of the Eleventh Schedule;
- (b) any purpose which is, in the opinion of the Commissioner dangerous to life, health or property or likely to create a nuisance;
- (c) keeping horses, cattle or other quadruped animals or birds for transportation, sale or hire or for sale of the produce thereof; or
- (d) storing any of the articles specified in Part II of the Eleventh Schedule except for domestic use of any of these animals:

Provided that the corporation may declare that premises in which the aggregate quantity of articles stores for sale does not exceed such quantity as may be prescribed by bye-laws in respect of any such articles shall be exempted from the operation of clause (d).

(2) In prescribing the terms of a licence granted under this section for the use of premises as mills or iron yards or for similar purposes the Commissioner may, when he thinks fit, require the licensee to provide a space or passage within the premises for carts for loading and unloading purposes.

3. The Corporation shall fix a scale of fees to be paid in respect of premises licensed under sub-section (1):

Provided that no such fee shall exceed five hundred rupees.

Section 418. Seizure of certain animals.- (1) If any horses, cattle or other quadruped animals or birds are kept on any premises in contravention of the provisions of section 417, or are found abandoned and roaming or tethered on any street or public place or on any land belonging to the Corporation, the Commissioner or any officer empowered by him may seize them and may cause them to be impounded or removed to such place as may be appointed by the Government or the Corporation for this purpose and the cost of seizure of these animals or birds and of impounding or removing them and of feeding and watering them shall be recoverable by sale by auction of these animals or birds:

Provided that anyone claiming such animal or bird may, within seven days of the seizure get them released on his paying all expenses incurred by the Commissioner in seizing, impounding or removing and in feeding and watering such animal or bird, and on his producing a licence for keeping these animals and birds issued under the provisions of section 417.

(2) Whenever the Commissioner is of opinion that the user of any premises for any of the purposes referred to in sub-section (1) of section 417 is causing a nuisance and such nuisance should be immediately stopped, the Commissioner may order the owner or the occupier of the premises to stop such nuisance within such time as may be specified in the order and in the event of the failure of the owner or occupier to comply with such order, the Commissioner may himself or by an officer subordinate to him cause such user to be stopped.

(3) Without prejudice to the foregoing provisions of this section any person by whom or at whose instance any horses, cattle or other quadruped animals or birds are so kept, abandoned or tethered, shall also be punishable under this Act.

Section 424 empowers the Commissioner, MCD to inspect places where unlawful slaughtering of animals, etc., is suspected. Section 424 (4) authorizes any police officer to arrest without warrant, any person slaughtering animals, or selling or exposing for sale the flesh of any such animal, in any place or manner not duly authorized under the provisions of the Act.

XIV. In the matter of **Civil Writ Petition No.6864 of 2001** filed by People For Animals, New Delhi against the Government of the National Capital Territory of Delhi and Others, the Hon'ble High Court of Delhi examined the legal position and held on 21st November, 2001, that it was the duty of both, the Municipal Corporation of Delhi and the Delhi Police to curb cruelty and cruel treatment to animals. The judgment was particularly critical of the manner in which animals are brought into the capital, and blames their owners, and transporters, for the barbaric conditions in which they are forced to undertake journeys. The judgment also emphasizes that such cruelty must be curbed, and places this responsibility upon the MCD and the Delhi Police.

The law of the land, awareness generated by N.G.O.s, judgments delivered by various courts, and the vigilance and dedication being shown by animal lovers place a great responsibility on the police force. In any event, as a law enforcement agency, the police must be sensitized to, and ensure

observance of animal protection laws. All districts and units like Traffic and P.C.R., should try and ensure that violations of these laws do not take place, or do not go unpunished, and that violators are brought to book in the manner envisaged by law.

XV. The **Animal Welfare Board of India** is a statutory body established under the Prevention of Cruelty to Animals Act. It is the nodal central agency for implementation of the provisions of the said Act. Its address is Post Box No.8672, 13/1, Third Seaward Road, Valmiki Nagar, Thiruvananthapuram, Chennai-600041, Telephone Numbers 044-24454958 & 24454935. The AWBI also has a camp office at Gurgaon, at No.3767, Sector 23, Gurgaon-122017, Telephone Number 01244105664.

XVI. The following **N.G.Os and voluntary organizations** are functioning in Delhi. Their assistance can be sought while implementing the provisions of the Act and statutory Rules:-

Sl. No.	Name of NGO	Address	Phone Number
1.	Jeev Ashram	Rajokari, Delhi Gurgaon Road	25064118
2.	Friendicos Seca	Under Flyover, Defence Colony, Delhi	24314787 24320303
3.	Circle of Animal Lovers	E-67, DDA Flats, Saket, New Delhi	26531419 26511569
4.	Ch. Desh Ram Gou Sewa	In front of J.N. University, Munirka	9818721187
5.	Love for Cow Trust	East of Kailash, Delhi	9818434399 Helplines 9350805410 23782219
6.	Sanjay Gandhi Animal Care Centre	Near Shivaji College, Raja Garden, Delhi	25448062
7.	People for Animals	14, Ashok Road, New Delhi	23357088 23359241 9911144272

XVII. Whenever any **COMPLAINT** is received at any police Station about cruelty to animals, the same is to be recorded in the daily diary. The S.P.C.A. staff may be asked to join the raiding party. The N.G.O.s and/or complainant may be asked to join the raiding party, especially as witness/es. The police personnel must however retain control over the raid. Before any animal is taken out from the cage/kennel, the same should be photographed after keeping a measuring tape on/along the dimension of the

cage/kennel. If any injury is detected on the body of animal, the same should also be photographed. The opinion of the S.P.C.A. team may also be obtained as to whether the animal was subjected to cruelty. The opinion of the N.G.O.s or complainant shall also be given due weight age. If the offence complained of is cognizable, F.I.R. is to be registered immediately, and investigation commenced. The animal should be taken into custody, handled with care and sensitivity, and produced before the concerned M.M. or Veterinary Officer. In the intervening period it can be placed in custody of an animal welfare organization or N.G.O.

XVIII. General

(i) It is neither necessary nor desirable that prosecution should be instituted in every case. Very often cruelty in this country is committed, and animals treated cruelly due to ignorance. If the police officer detecting a case of cruelty sternly warns the concerned person (whether owner or driver or any other person), and points out to him that it is against the law to treat animals cruelly, the situation may be remedied. He can additionally point out what exactly is wrong, and how it should be remedied. In case of repeated or extreme cruelty, however, or when owners, drivers, or other persons are not amenable to advice or reason, the police officer should have no hesitation in instituting prosecutions under the appropriate provision of law. The ambulance of the Delhi Society for Prevention of Cruelty to Animals can be requisitioned when required, to remove an animal which has been seriously injured. When such a requisition is made, a daily diary entry to this effect must be recorded in the police station concerned. This ambulance is maintained at the S.P.C.A. hospital (Tel. No.23972805). In all accidents involving serious injuries, the animal should be sent to the S.P.C.A. hospital or dispensary at Tis Hazari, Delhi. As an alternative, the assistance of an N.G.O. or voluntary organization, or animal welfare organization can be sought. What has to be kept in mind at all times is that the animal must receive proper care.

ii) In a meeting held at Raj Niwas, the issue of illegal slaughtering of animals was discussed by the L.G. Delhi and the Hon'ble L.G. Delhi had desired immediate police assistance to the MCD teams. Further, in a communication vide D.O. dated 11/9/09, Commissioner - MCD had informed that a number of instances of illegal slaughtering of animals in the city (especially in the area of North-East Distt.) are being reported to the MCD which is assuming serious dimensions. In MCD, 12 Zonal Veterinary Officers working under the administrative control of the respective Zonal Deputy Commissioners have been assigned the duty of

checking illegal slaughtering of animals, besides three Central Meat Raid teams which supplement the efforts of the Zonal Veterinary Officers. The butchers/meat shopkeepers are a belligerent lot and they do not hesitate to manhandle the staff on duty leave alone misbehaving with them which is routine. There have been instances of intimidation and attacks on staff deployed for checking illegal slaughtering. Therefore, Nodal Officers have been nominated from each District to maintain liaison with MCD in connection with illegal slaughtering of animals in the city. The MCD can contact the Nodal Officers in advance, so that force could be arranged well in time.

(iii) **"Nodal Officers"** – ACP/Operations of each district shall be nominated as the nodal officer for checking of illegal slaughtering of animals in the city, Delhi and shall maintain liaison with the respective counterpart in the MCD.

XIX. This Standing Order supersedes the previous Standing Order No. 31, issued vide No. 39762-900/XXIX/Spl./C&T-AC-V, dated 19.12.1988.


(Yudhbir Singh Dadwal)
Commissioner of Police, Delhi

OB No. 65 /Record Branch (PHQ), Dated, Delhi, the 19/10 /2010

No. 10001-10250 /RB/PHQ dated, Delhi, the 19/10 /2010.

Copy to:-

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4. All District/Units including Principal/PTC and FRRO Delhi.
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